IN THE NATIONAL COMPANY LAW TRIBUNAL, SPECIAL BENCH - I, CHENNAI

CA (CAA)/17(CHE)/2023

(Under Sections 230 to 232 of the Companies Act, 2013
In the matter of Scheme of Arrangement (Amalgamation)

of

MAX COMMERCIAL PRIVATE LIMITED
CIN: U51909TN2007PTC118122
Unit No.9B, 3rd Floor, R A Building, 72, Marshalls Road,
Egmore, Chennai – 600 008

...Applicant/ Transferor Company -1

And

JHAVER MERCANTILE PRIVATE LIMITED
CIN: U67120TN1993PTC025489
Unit No.10B, 3rd Floor, R A Building, 72, Marshalls Road,
Egmore, Chennai – 600 008

... Applicant/ Transferor Company-2

And

RSRK MERCANTILE PRIVATE LIMITED
CIN: U65993TN1993PTC025787
No.3A, R A Building, 2nd Floor,
Old No.19, New No. 72, Marshalls Road,
Egmore, Chennai – 600 008

... Applicant/ Transferor Company-3

And

PEACOCK FLOWER PROPERTIES PRIVATE LIMITED
CIN: U70102TN2010PTC078038
No.3A, R A Building, 2nd Floor,
Old No.19, New No. 72, Marshalls Road,
Egmore, Chennai – 600 008

... Applicant/ Transferor Company-4

And

LA SANTE LIFESCIENCES PRIVATE LIMITED
CIN: U24232TN2005PTC057344
Unit No.9B, 3rd Floor, R A Building, 72, Marshalls Road,
Egmore, Chennai – 600 008

... Applicant/ Transferor Company-5

And

ALLIANZ BIOTECH PRIVATE LIMITED
CIN: U24231TN2003PTC051535
Unit No.9B, 3rd Floor, R A Building, 72, Marshalls Road,
Egmore, Chennai – 600 008

... Applicant/ Transferor Company-6

And

TIL LIFESCIENCE PRIVATE LIMITED
CIN: U24231TN1999PTC043857
Block No.9B, 3rd Floor, R A Building,
Old No.19, New No. 72, Marshalls Road,
Egmore, Chennai – 600 008

... Applicant/ Transferor Company-7

With

MADHU SECURITIES PRIVATE LIMITED
CIN: U65993TN1993PTC025786
No.3A, R A Building, 2nd Floor,
Old No.19, New No. 72, Marshalls Road,
Egmore, Chennai – 600 008

...Transferee Company

Order Pronounced on ***12th June 2023***

CORAM

SANJIV JAIN, MEMBER (JUDICIAL)
SAMEER KAKAR, MEMBER (TECHNICAL)

For Applicant(s): Mr. Naveen Kumar Murthy, Advocate

ORDER

***Per:* SAMEER KAKAR, MEMBER (TECHNICAL)**

This is a joint application filed by the Applicant Companies, namely **MAX COMMERCIAL PRIVATE LIMITED** (hereinafter "Transferor Company-1"), **JHAVER MERCANTILE PRIVATE LIMITED** (hereinafter "Transferor Company-2"), **RSRK MERCANTILE PRIVATE LIMITED** (hereinafter "Transferor Company-3"), **PEACOCK FLOWER PROPERTIES PRIVATE LIMITED** (hereinafter "Transferor Company-4") **LA SANTE LIFESCIENCES PRIVATE LIMITED** (hereinafter "Transferor Company-5") **ALLIANZ BIOTECH PRIVATE LIMITED** (hereinafter "Transferor Company-6") **TIL LIFESCIENCE PRIVATE LIMITED** (hereinafter "Transferor Company-7") (together the "Applicant Companies") and **MADHU SECURITIES PRIVATE LIMITED** (hereinafter Transferee Company") with its Shareholders under section 230-232 of

Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Amalgamation (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies herein with its Shareholders. The said Scheme is appended as "Annexure – J" as Page no. 493 – 538 in the typed set filed along with the Application.

2. The Applicant Companies in this Company Application have sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
TRANSFEROR COMPANY – 1	To dispense with	NIL	NIL
TRANSFEROR COMPANY – 2	To dispense with	NIL	To dispense with
TRANSFEROR COMPANY – 3	To dispense with	NIL	NIL
TRANSFEROR COMPANY – 4	To dispense with	NIL	NIL
TRANSFEROR COMPANY – 5	To dispense with	NIL	NIL
TRANSFEROR COMPANY – 6	To dispense with	NIL	NIL
TRANSFEROR COMPANY – 7	To dispense with	NIL	NIL
TRANSFEREE COMPANY	To dispense with	NIL	NIL

3. From the certificate of incorporation filed, it is seen that:

(i) **TRANSFEROR COMPANY - 1** is a Private limited company incorporated under the provisions of Companies Act, 1956 on 22.10.2007. The Authorized Share Capital of the Transferor Company-1 is ₹18,00,000 (Rupees Eighteen Lakhs Only) consisting of 1,80,000 Equity Shares of ₹10/- each. The Issued, Subscribed and Paid-up Capital is ₹17,80,000 (Rupees Seventeen Lakhs and Eighty Thousand only) consisting of 1,78,000 Equity Shares of ₹10/- each. The Registered office address of the Transferor Company – 1 is situated at Unit No.9B, 3rd Floor, R A Building, 72, Marshalls Road, Egmore, Chennai – 600 008.

(ii) **TRANSFEROR COMPANY - 2** is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 22.07.1993. The Authorized Share Capital is ₹2,00,00,000 (Rupees Two Crore Only) consisting of 20,00,000 Equity Shares of ₹10/- each. The Issued, Subscribed and Paid-up Capital is ₹1,30,47,000 (Rupees One Crore Thirty Lakh and Forty-Seven Thousand Only) consisting of 13,04,700 Equity Shares of ₹10/- each. The Registered office address of the Transferor Company – 2 is situated at Unit No.10B, 3rd Floor, R A Building, 72, Marshalls Road, Egmore, Chennai – 600 008.

(iii) **TRANSFEROR COMPANY - 3** is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 14.09.1993. The Authorized Share Capital is ₹50,00,000 (Rupees Fifty Lakh Only) consisting of 5,00,000 Equity Shares of ₹10/- each. The Issued, Subscribed and Paid-up Capital is ₹30,63,100 (Rupees Thirty Lakhs Sixty Three thousand and hundred Only) consisting of 3,06,310 Equity Shares of ₹10/- each. The Registered office address of the Transferor Company – 3 is situated at No.3A, R A Building, 2nd Floor, Old No.19, New No. 72, Marshalls Road, Egmore, Chennai – 600 008.

(iv) **TRANSFEROR COMPANY - 4** is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 11.11.2010. The Authorized Share Capital is ₹25,00,000 (Rupees Twenty-Five lakh Only) consisting of 2,50,000 Equity Shares of ₹10/- each. The Issued, Subscribed and Paid-up Capital is ₹11,00,000 (Rupees Eleven lakh Only) consisting of 1,10,000 Equity Shares of ₹10/- each. The Registered office address of the Transferor Company – 4 is situated at No.3A, R A Building, 2nd Floor, Old No.19, New No. 72, Marshalls Road, Egmore, Chennai – 600 008

(v) The **TRANSFEROR COMPANY - 5** is a Private Limited company incorporated under the provisions of Companies Act, 1956 on

30.08.2005. The Authorized Share Capital is ₹1,10,00,000 (Rupees One Crore and Ten lakh Only) consisting of 11,00,000 Equity Shares of ₹10/- each. The Issued, Subscribed and Paid-up Capital is ₹1,01,00,000 (Rupees One Crore and One lakh Only) consisting of 10,10,000 Equity Shares of ₹10/- each. The Registered office address of the Transferor Company – 5 is situated at Unit No.9B, 3rd Floor, R A Building, 72, Marshalls Road, Egmore, Chennai – 600 008

(vi) **TRANSFEROR COMPANY - 6** is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 08.09.2003. The Authorized Share Capital is ₹25,00,000 (Rupees Twenty-Five lakh Only) consisting of 2,50,000 Equity Shares of ₹10/- each. The Issued, Subscribed and Paid-up Capital is ₹4,70,000 (Rupees Four lakh and Seventy Thousand Only) consisting of 47,000 Equity Shares of ₹10/- each. The Registered office address of the Transferor Company – 6 is situated at Unit No.9B, 3rd Floor, R A Building, 72, Marshalls Road, Egmore, Chennai – 600 008

(vii) **TRANSFEROR COMPANY - 7** is a Private Limited company incorporated under the provisions of Companies Act, 1956 on 29.12.1999. The Authorized Share Capital is ₹50,00,000 (Rupees Fifty lakhs Only) consisting of 5,00,000 Equity Shares of ₹10/-

each. The Issued, Subscribed and Paid-up Capital is ₹5,07,000 (Rupees Five lakh and Seven Thousand Only) consisting of 50,700 Equity Shares of ₹10/- each. The Registered office address of the Transferor Company – 7 is situated at Old No.19, New No. 72, Marshalls Road, Egmore, Chennai – 600 008

(viii) **TRANSFEREE COMPANY** is a private company incorporated under the provisions of the Companies Act, 1956 on 14.09.1993. The Authorised Share Capital is ₹60,00,000 (Rupees Sixty Lakhs Only) consisting of 6,00,000 equity shares of ₹10/-/- each. The Issued, Subscribed and Paid-up Capital of the Transferee Company is 50,00,000 (Rupees Fifty Lakhs Only) consisting of 5,00,000 equity shares of ₹10/- each. The Registered office address of the Transferee Company is situated at No.3A, R A Building, 2nd Floor, Old No.19, New No. 72, Marshalls Road, Egmore, Chennai – 600008.

4. Affidavits in support of the above application sworn for and on behalf of the Applicant Companies by the following shareholder/ Directors are hereunder: -

(i) Transferor Company 1, Mr. Narendra Kumar Sharma in the capacity of the Director and Authorized Person

(ii) Transferor Company 2, Mr. Govind Sharma in the capacity of Authorized person.

(iii) Transferor Company 3, Mr. J. Karthikeyan in the capacity of Authorized person.

(iv) Transferor Company 4, Mr. P. Karthick in the capacity of Authorized person.

(v) Transferor Company 5, Mr. B. Dharmendran in the capacity of Authorized person.

(vi) Transferor Company 6, Mr. G. Devarajan in the capacity of Authorized person.

(vii) Transferor Company 7, Mr. J. Kaviyarasan in the capacity of Authorized person.

(viii) Transferee Company, Mr. Himanshu Ojha in the capacity of Authorized person.

It is also represented that the Registered office of the Applicant Companies are situated within the jurisdiction of Registrar of Companies, Chennai.

5. **MAX COMMERCIAL PRIVATE LIMITED**
(TRANSFEROR COMPANY – 1)

(i) There are **Six (6)** Equity Shareholders, whose consent affidavits are placed at **Pg. Nos. 555-588.** The Certificate issued by the Chartered Accountant the list of Equity Shareholders is placed at **Pg. No. 554.** It seeks **dispensation** with holding of meeting.

(ii) There is **NIL** Secured & Unsecured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at **Pg. No. 816.**

6. **JHAVER MERCANTILE PRIVATE LIMITED**
(TRANSFEROR COMPANY – 2)

(i) There are **Six (6)** Equity Shareholders, whose consent affidavits are placed at **Pg. No. 590-623.** The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg No. 589.** It seeks **dispensation** with holding of meeting.

(ii) There is **NIL** Secured Creditor and the certificate issued by the Chartered Accountant to this effect is placed at **Pg. No. 818.**

(iii) There is **One (1)** Unsecured Creditor and certifying the list of Unsecured Creditor is placed at **Pg. No. 819 – 821.** The consent Affidavits given by sole unsecured creditor is placed at **Pg. No. 822 – 828.** It seeks **dispensation** with holding meeting.

7. **RSRK MERCANTILE PRIVATE LIMITED**
(TRANSFEROR COMPANY – 3)

(i) There are **Four (4)** Equity Shareholders, whose consent affidavits are placed at **Pg. Nos. 625-646.** The Certificate issued by the Chartered Accountant the list of Equity Shareholders is placed at **Pg. No. 624.** It seeks **dispensation** with holding of meeting.

(ii) There is **NIL** Secured & Unsecured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at **Pg. Nos. 829 – 830.**

8. **PEACOCK FLOWER PROPERTIES PRIVATE LIMITED**
(TRANSFEROR COMPANY – 4)

(i) There are **Six (6)** Equity Shareholders, whose consent affidavits are placed at **Pg. Nos. 648-677.** The Certificate issued by the Chartered Accountant the list of Equity Shareholders is placed at **Pg. No. 647.** It seeks **dispensation** with holding of meeting.

(ii) There is **NIL** Secured & Unsecured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at **Pg. Nos. 831 – 832.**

9. **LA SANTE LIFESCIENCES PRIVATE LIMITED**
(TRANSFEROR COMPANY – 5)

(i) There are **Seven (7)** Equity Shareholders, whose consent affidavits are placed at **Pg. Nos. 679-718.** The Certificate issued by the Chartered Accountant the list of Equity

Shareholders is placed at **Pg. No. 678.** It seeks **dispensation** with holding of meeting.

(ii) There is **NIL** Secured & Unsecured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at **Pg. Nos. 833 – 834.**

10. **ALLIANZ BIOTECH PRIVATE LIMITED**
(TRANSFEROR COMPANY – 6)

(i) There are **Five (5)** Equity Shareholders, whose consent affidavits are placed at **Pg. Nos. 721-748.** The Certificate issued by the Chartered Accountant the list of Equity Shareholders is placed at **Pg. Nos. 719 – 720.** It seeks **dispensation** with holding of meeting.

(ii) There is **NIL** Secured & Unsecured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at **Pg. Nos. 835 – 836.**

11. **TIL LIFESCIENCE PRIVATE LIMITED**
(TRANSFEROR COMPANY – 7)

(i) There are **Five (5)** Equity Shareholders, whose consent affidavits are placed at **Pg. Nos. 751-774.** The Certificate issued by the Chartered Accountant the list of Equity Shareholders is placed at **Pg. Nos. 749 – 750.** It seeks **dispensation** with holding of meeting.

(ii) There is **NIL** Secured & Unsecured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at **Pg. Nos. 837 – 838.**

12. **MADHU SECURITIES PRIVATE LIMITED**
(TRANSFEREE COMPANY)

(i) There are **Seven (7)** Equity Shareholders, whose consent affidavits are placed at **Pg. Nos. 776-815.** The Certificate issued by the Chartered Accountant the list of Equity Shareholders is placed at **Pg. No. 775.** It seeks **dispensation** with holding of meeting.

(ii) There is **NIL** Secured & Unsecured Creditor. The certificate issued by the Chartered Accountant to this effect is placed at **Pg. Nos. 839 – 840.**

13. We have perused the application and the connected documents / papers filed therewith including the Scheme contemplated by the Applicant companies.

14. The Applicant Companies has filed the Memorandum and Articles of Association *inter alia* delineating its object clauses as well as their last available Audited Financial Statements for the year ended 31.03.2022 and Provisional Financial Statements as on 31.12.2022.

15. The Board of Directors of the Applicant Companies vide meeting held on 17.02.2023 have unanimously approved the proposed Scheme

as contemplated above. The copies of the resolutions passed thereon have been placed on record by the Applicant Companies.

16. The Appointed date as specified in the Scheme is 01.04.2023.

17. The Statutory Auditors of the Transferee Company have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the rules made there under and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013.

18. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal issues following directions: -

A. <u>IN RELATION TO THE TRANSFEROR COMPANY – 1:</u>

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company – 1 that there are **Six (6)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with.*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company – 1 that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company-1 that there is **NIL** Unsecured Creditor in the Company, the necessity of convening a meeting does not arise.

B. <u>IN RELATION TO THE TRANSFEROR COMPANY – 2:</u>

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company – 2 that there are **Six (6)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company – 2 that there is NIL Secured Creditor in the Company, the necessity of convening a meeting does not arise.

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company – 2 that there is One **(1)** Unsecured Creditors in the Company and the consent Affidavit obtained from the sole unsecured creditor is placed on

record, the necessity of convening, holding and conducting the meeting is *dispensed with*

C. IN RELATION TO THE TRANSFEROR COMPANY – 3:

(i) With respect to the Equity shareholders:

Since it is represented by the Transferor Company – 3 that there are **Four (4)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) With respect to the Secured Creditors:

Since it is represented by the Transferor Company – 3 that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting *does not arise.*

(iii) With respect to the Unsecured Creditors:

Since it is represented by the Transferor Company – 3 that there is **NIL** Unsecured Creditor in the Company, the necessity of convening a meeting *does not arise.*

D. IN RELATION TO THE TRANSFEROR COMPANY – 4:

(i) With respect to the Equity shareholders:

Since it is represented by the Transferor Company – 4 that there are **Six (6)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company – 4 that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company – 4 that there is **NIL** Unsecured Creditor in the Company, the necessity of convening a meeting *does not arise.*

E. IN RELATION TO THE TRANSFEROR COMPANY – 5:

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company – 5 that there are **Seven (7)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company – 5 that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company – 5 that there is **NIL** Unsecured Creditor in the Company, the necessity of convening a meeting *does not arise.*

F. IN RELATION TO THE TRANSFEROR COMPANY – 6:

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company – 6 that there are **Five (5)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company – 6 that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company – 6 that there is **NIL** Unsecured Creditor in the Company, the necessity of convening a meeting *does not arise.*

G. IN RELATION TO THE TRANSFEROR COMPANY – 7:

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferor Company – 7 that there are **Five (5)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferor Company – 7 that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferor Company – 7 that there is **NIL** Unsecured Creditor in the Company, the necessity of convening a meeting *does not arise.*

H. IN RELATION TO THE TRANSFEREE COMPANY:

(i) **With respect to the Equity shareholders:**

Since it is represented by the Transferee Company that there are **Seven (7)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained from all and are placed on record, the necessity of convening, holding and conducting the meeting is *dispensed with*

(ii) **With respect to the Secured Creditors:**

Since it is represented by the Transferee Company that there is **NIL** Secured Creditor in the Company, the necessity of convening a meeting *does not arise.*

(iii) **With respect to the Unsecured Creditors:**

Since it is represented by the Transferee Company that there is **NIL** Unsecured Creditor in the Company, the necessity of convening a meeting *does not arise.*

19. Accordingly, the Application stands **allowed** and the Applicant Companies are directed to file the second motion Application within a period of fourteen (14) days from the date of this order.

— Sd —

SAMEER KAKAR
MEMBER (TECHNICAL)

— Sd —

SANJIV JAIN
MEMBER (JUDICIAL)

Raymond

Order pronounced under Rule 151 of NCLT Rules 2016, by Hon'ble Technical Member Sameer Kakar on behalf of the Bench Comprising of Sanjiv Jain, Member (Judicial) and Sameer Kakar, Member (Technical)

Court officer,